

23STCV30404 23STCV30404

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Case Number: 23STCV30404 Hearing Date: July 10, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 10, 2026

Case Name: Prioette v. Abbvie Inc., et al.

Case No.: 23STCV30404

Matter: Demurrer

Moving Party: Defendants Abbvie Inc. and Allergan, Inc.

Responding Party: Plaintiff Perry Prioette

Notice: OK

Ruling: The Demurrer is sustained in part, without leave to amend.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff Perry Prioette alleges that he is an optician and that Defendants Abbvie Inc. and Allergan, Inc. came into Plaintiff's workplace to unlawfully distribute samples of Vuity eye drops that caused Plaintiff to experience vitreous detachment within

his eye. On January 27, 2026, Plaintiff filed the First Amended Complaint ("FAC") for (1) negligence, (2) products liability (design), (3) products liability (warning), and (4) negligence per se.

Defendants now demur to the entirety of the FAC for failure to state sufficient facts.

When considering demurrers, courts read the allegations liberally and in context, and "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) It is error "to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

Design Defect

The Court agrees with Defendant's argument that Plaintiff's design defect claim is preempted under Mutual Pharmaceutical Co. v. Bartlett (2013) 570 U.S. 472 because a manufacturer cannot unilaterally alter an FDA-approved formulation.

Plaintiff improperly conflates a distribution violation with a chemical design defect. The chemical composition of Vuity remains identical regardless of the distribution channel utilized. Because the alleged defect rests strictly on the underlying composition of the drug damaging eyes, and federal law prohibits unilateral alterations to that formulation, the design defect claim is preempted.

The Demurrer is sustained as to the second cause of action, without leave to amend.

Failure to Warn

While a manufacturer's duty to warn generally runs to the physician (Carlin v. Superior Court (1996) 13 Cal.4th 1104), the FAC explicitly alleges that Defendants bypassed this protective framework by delivering the drug directly to a consumer via an unauthorized sample channel. The face of the pleading does not establish the defense as a matter of law.

Under Wyeth v. Levine (2009) 555 U.S. 555, a brand-name manufacturer may unilaterally update a label via the Changes Being Effected (CBE) regulation based on "newly acquired information." Plaintiff sufficiently satisfies this standard by pleading that post-marketing adverse event data and medical literature provided Defendants with newly acquired data regarding vitreous detachments prior to his injury.

Negligence

Plaintiff alleges a breach of an independent state-law duty of care under California Civil Code § 1714(a), utilizing the federal sample-distribution frameworks (21 C.F.R. § 203.31) to establish the standard of conduct under California Evidence Code § 669 (Gilead Tenofovir Cases (2024) 98 Cal.App.5th 911).

While negligence per se is an evidentiary doctrine supporting Count I rather than a standalone cause of action (Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256), a demurrer does not lie to a portion of a cause of action or an alternative legal theory. The Demurrer to the negligent claims is overruled.

In sum, the Demurrer is sustained as to the second cause of action, but is otherwise overruled. Leave to amend is denied.

The RJN is granted as to Exhibits A, C, and D, but denied as to Exhibits B, E, and F.

Moving party to give notice.